# FALYS

## BUYER TERMS & CONDITIONS

Software Use • Buyer Responsibilities • Risk & Liability

Applies to the Falys self-hosted software and associated materials supplied with a valid purchase.

### 01 Acceptance, Scope and Controlling Terms

These terms apply to FALYS software, source code, binaries, documentation and related materials supplied with a valid purchase. By downloading, installing or using FALYS, the buyer accepts these terms to the extent permitted by applicable law. Any separately agreed written purchase or license terms and non-waivable statutory rights take precedence where they conflict with this document. These terms do not override mandatory consumer protections.

### 02 License, Source Code and Redistribution

Purchase of FALYS grants a right to use the delivered software for the buyer's authorized purposes, subject to any separate written license supplied with the purchase. The purchase does not transfer ownership of copyright or intellectual property. Unless expressly authorized in writing, the buyer may not resell, sublicense, redistribute, publish, share or commercially repackage the FALYS source code, binaries or purchased distribution. Third-party components remain subject to their applicable licenses. Specific deployment or distribution rights should be confirmed in the applicable written license.

### 03 Self-Hosted Deployment and Infrastructure

FALYS is self-hosted, not a managed monitoring service. The buyer is responsible for a compatible server, operating systems, PostgreSQL, network, firewalls, storage, hardware capacity, backups, endpoint access, software updates and hardening. The buyer must test the application in their own environment and keep server and agents correctly configured. The seller is not responsible for incidents caused solely by buyer infrastructure, misconfiguration or unmanaged third-party systems, except as required by applicable law.

### 04 Monitoring Limitations and No Security Guarantee

FALYS is a file-integrity monitoring and investigation aid, not a guarantee of intrusion prevention, complete incident discovery, uninterrupted surveillance or successful response. It does not replace antivirus, EDR, SIEM, a professional security program or qualified incident responders. Events can be missed or delayed; heuristic detection scores and severity/confidence classifications may produce false positives and false negatives. Buyers must verify evidence before making operational or security decisions.

### 05 Agent Operation, Attribution and Supported Environments

Monitoring depends on supported Windows/Linux versions, permissions, filesystem behavior, configured paths, network availability and agent health. File attribution requires properly configured Linux auditd or Windows Object Access/Security auditing and may be verified, unverified, partial or unavailable. A recorded account is not necessarily conclusive proof of the human actor. Network filesystems, OS restrictions, heavy file activity, excluded paths and hardware limits can affect compatibility, latency, resource consumption or completeness. The buyer must validate suitability and performance on actual workloads.

### 06 Command Tunnel, Rescans and Quarantine

The optional server-to-agent command tunnel may require access to TCP port 50997 and uses authenticated, TLS-protected communication. The buyer must secure firewall rules, command access, shared secrets and endpoint permissions. Commands, particularly file quarantine and rescans, may interrupt applications, move needed files or affect production workloads. The buyer is responsible for authorization, target selection, testing, backups, recovery procedures and any consequences of commands it initiates.

### 07 Credentials, Keys, Certificates and Access Control

The buyer must secure and rotate administrator passwords, discovery tokens, agent API keys, database/SMTP credentials, tunnel secrets, environment files and certificate private keys. The default self-signed TLS setup may cause browser trust warnings; certificate pinning and secure certificate management must be maintained by the buyer. Exposed or reused secrets, disabled security checks, overly broad network access and unsecured management interfaces create risks for which the buyer is responsible to the extent permitted by law.

### 08 Privacy, Data Collection and Lawful Monitoring

The buyer controls the self-hosted deployment and data stored in its PostgreSQL database, including usernames, system identifiers, IP addresses, paths, hashes, events and audit data. The buyer must have authority to monitor relevant systems and must satisfy applicable workplace notices, permissions, legal bases, retention periods, access controls and privacy/cybersecurity laws. FALYS does not itself confer permission to monitor employees or third parties and does not provide a privacy-law or compliance certification.

### 09 Data Loss, Backups, Retention and Availability

The buyer is responsible for database administration, storage capacity, data retention, backup frequency, off-site backup protection, successful restoration testing and business-continuity planning. No guarantee is made of uninterrupted uptime, event capture, queue delivery, complete audit history or zero loss during failures, outages, restarts, disk/database errors or network interruption. An offline event queue reduces some delivery gaps but is not a substitute for backup or disaster recovery.

### 10 Third-Party Services, Libraries and Network Dependencies

Email alerts require a separately configured SMTP provider and may be subject to fees, rate limits, policy changes, spam filtering, outages and delivery failures outside the seller’s control. PostgreSQL, Python dependencies, operating systems and included or externally loaded libraries are subject to their own terms, vulnerabilities and updates. If any deployment loads CDN-hosted resources (for example, icon or font libraries), their availability and privacy implications also depend on the relevant provider. Buyers must inspect and secure third-party services used in their own installation; no specific CDN dependency is warranted unless documented in the delivered version.

### 11 Source Modifications, Custom Builds and Binary Integrity

The buyer assumes responsibility for modifications to source code, rules, engine settings, configuration files, integrations and rebuilt binaries. Changes may cause regressions, incompatibility, security weaknesses or false/missed alerts. Buyers should verify the integrity and provenance of downloaded and locally rebuilt packages using suitable security practices, including checksums or signatures where available. This document does not imply that a particular checksum or signing certificate is supplied. Support for custom code or third-party changes is not promised unless separately agreed.

### 12 Features and Service Boundaries

Only functions included with the version purchased are provided. FALYS does not promise SIEM/syslog forwarding, clustering, ready-made compliance reports, managed hosting, remote system administration,

managed incident response or unlisted integrations. Future improvements, new operating-system support, compatibility releases or additional features are not guaranteed unless expressly agreed in writing or required by applicable law.

### 13 Security, Compliance and Professional Advice

FALYS logs and reports may help investigations, but do not guarantee that a system meets any legal, regulatory, industry or audit standard. The buyer remains responsible for policies, access reviews, incident response, regulatory reporting and independent validation. The application and documentation are technical tools, not legal, forensic, compliance or other professional advice.

### 14 Support Scope, Response and Updates

Product support, if included in the purchase, is provided only within the duration, channel and scope communicated in the seller's written purchase or support terms. Unless expressly agreed, support does not include managed installation, ongoing hosting, third-party account administration, custom development, production incident response, data recovery or work on buyer-modified code. No fixed response or resolution time is promised unless expressly stated in writing. This clause does not limit statutory rights or obligations the seller cannot lawfully exclude.

### 15 Warranty Disclaimer

To the maximum extent permitted by applicable law, FALYS is supplied "as is" and "as available," without additional promises of uninterrupted operation, universal compatibility, error-free performance, complete security, fitness for every specific purpose or immunity from vulnerabilities. Any express warranties agreed in writing remain effective. This provision does not exclude statutory warranties, remedies or consumer protections that cannot legally be disclaimed.

### 16 Limitation of Liability

To the maximum extent permitted by applicable law, the seller is not liable for indirect, special, incidental, punitive or consequential damages, lost profits or revenue, business interruption, lost data, missed alerts or third-party outages arising from the product's use. Where legally permitted, the seller's aggregate monetary liability arising from the purchase or use of FALYS is limited to the amount paid by the buyer for FALYS. This limit does not apply where liability cannot lawfully be limited or excluded, including any applicable non-excludable statutory protections.

### 17 Lawful Use and Third-Party Claims

The buyer must deploy FALYS only on systems and information it owns or has explicit legal authority to monitor. It must not use the software for unauthorized surveillance, intrusion, interference or unlawful data collection. To the extent legally permitted, the buyer is responsible for third-party claims directly caused by its unauthorized monitoring, unlawful use or material breach of these terms, except to the extent caused by the seller's own conduct or non-excludable liability. Any indemnity must be interpreted subject to controlling law.

### 18 Refunds, Changes, Severability and Contact

Refunds and cancellations are subject to any written sale terms supplied to the buyer and applicable mandatory law; no blanket "no refunds" policy is imposed here. Unenforceable provisions do not invalidate the remainder where lawful. Amendments do not retroactively remove accrued buyer rights. Questions may be directed to the contact method provided with the purchase or documentation.